

In this Motion, Petitioner seeks to amend the Petition by converting it into a complaint. He cites Section 473 of the CCP, but he does not suggest how this section applies to his matter. His argument for the request seems to be that he wants to ensure that he's seeking the appropriate legal remedy.

Analysis

Section 473 of the CCP permits a court to grant leave to a party to amend a pleading in case of mistake.

But there's no mistake apparent in the Petition.

Section 1094.5 of the CCP is the governing authority for an appeal of an administrative agency's decision. The chapter of this section makes quite clear that a party seeks relief from the superior court by petitioning for a writ of mandate. Petitioner's initial attempt at relief is the correct one.

There is no basis for leave to file a complaint.

Disposition

Petitioner's Motion is denied.

Court to issue Order.

15. 9:00 AM CASE NUMBER: N26-0983
CASE NAME: KENNEDY KOBLIN VS. AFSOON MIRZAI
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KOBLIN, KENNEDY
***TENTATIVE RULING**

Petitioner has filed a Petition to confirm an arbitration award. But Petitioner has not attached any documents from the arbiter that reflect the award, nor has Petitioner provided any notice to Respondent.

Disposition

This Petition will be continued to 1/12/27 at 9 a.m.

Petitioner to provide proper notice to Respondent.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: MS26-0537
CASE NAME: MOUNT DIABLO REALTY & PROPERTY MANAGEMENT VS. CHAVA YEAL KINNIBURGH
JURY TRIAL

FILED BY: KINNIBURGH, CHAVA YEAL

TENTATIVE RULING: